

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:
SUMMONS

-----X
ANIBAL NIEVES,

Plaintiff,

Plaintiff designates County as
the place of trial.

-against-

The basis of venue is:
Plaintiff's residence

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, and P.O. "JOHN DOE" #1 AND P.O.
"JOHN DOE" #2 (the names herein to be fictitious as they
are currently unknown) and POLICE OFFICER PHILLIP
PENA SHIELD NO.: 11192,

Plaintiff resides at:
1600 McCombs Road
Bronx, NY 10452

Defendants.
-----X

County of BRONX

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
September 29, 2017


MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)
ANIBAL NIEVES,
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 9053

TO: THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007

POLICE OFFICER PHILLIP PENA SHIELD NO.: 11192
Bronx Housing Authority Police
737 Melrose Ave
Bronx, NY 10455

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
ANIBAL NIEVES,

Plaintiff,

Index No.:
Date Purchased:**VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, and P.O. "JOHN DOE" #1 AND P.O.
"JOHN DOE" #2 (the names herein to be fictitious as they
are currently unknown) and POLICE OFFICER PHILLIP
PENA SHIELD NO.: 11192,Defendants.
-----X

JAQUAN DAWSON, by his attorneys, **GETZ & BRAVERMAN, P.C.**, respectfully alleges
as follows:

AS AND FOR A FIRST CAUSE OF ACTION

- (1) At all times mentioned, Plaintiff **ANIBAL NIEVES**, is a resident of Bronx County, City and State of New York.
- (2) At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the Laws of the State of New York.
- (3) Upon information and belief, at all times mentioned, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, and P.O. "JOHN DOE" #1 AND P.O. "JOHN DOE" #2 (the names herein to be fictitious as they are currently unknown) and POLICE OFFICER PHILLIP PENA SHIELD NO.: 11192**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
- (4) At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

(5) That as of this writing a 50H Hearing has not been conducted.

(6) Upon information and belief, at all times mentioned, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, and P.O. "JOHN DOE" #1 AND P.O. "JOHN DOE" #2 (the names herein to be fictitious as they are currently unknown) and POLICE OFFICER PHILLIP PENA SHIELD NO.: 11192**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

(7) On or about July 12, 2016, at 137th and Brook Avenue, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **ANIBAL NIEVES**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

(8) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.

(9) On or about July 12, 2016, at 137th and Brook Avenue, County of Bronx, State of New York the Defendants jointly and severally did place Plaintiff **ANIBAL NIEVES**, in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

(10) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.

(11) On or about July 12, 2016, at 137th and Brook Avenue, County of Bronx, State of New York the Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, and P.O. "JOHN DOE" #1 AND P.O. "JOHN DOE" #2 (the names herein to be fictitious as they are currently unknown) and POLICE OFFICER PHILLIP PENA SHIELD NO.: 11192**, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of the Bronx and there charged him with the crimes on Docket No.: B16639507. The Plaintiff was thereafter held in custody over the course of approximately ten (10) hours until his case was dismissed on July 13, 2016. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

(12) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.

(13) On or about July 12, 2016, at 137th and Brook Avenue, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the 46th Precinct. The Plaintiff was thereafter held in custody over the course of approximately ten (10) hours until his case was dismissed on July 13, 2016. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

(14) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.

(15) Upon information and belief, on or about July 12, 2016, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, and P.O. "JOHN DOE" #1 AND P.O. "JOHN DOE" #2 (the names herein to be fictitious as they are currently unknown) and POLICE OFFICER PHILLIP PENA SHIELD NO.: 11192**, deliberately and maliciously prosecuted Plaintiff **ANIBAL NIEVES**, an innocent male without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

(16) The Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.

(17) The commencement of these criminal proceedings under Docket No. B16639507 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

(18) As a result of the malicious prosecution, Plaintiff was deprived of him liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges.

AS AND FOR A SIXTH CAUSE OF ACTION

(This Cause of Action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

(19) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.

(20) Defendants **POLICE OFFICER PHILLIP PENA TAX ID NO.:11192**, was at all times relevant, duly appointed and acting officers of the City of New York Police Department.

(21) At all times mentioned herein, said police officers were acting under color of law,

to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

(22) Plaintiff **ANIBAL NIEVES**, is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

(23) The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.

(24) On or about July 12, 2016, the Defendants, armed police, while effectuating the seizure of Plaintiff **ANIBAL NIEVES**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so.

(25) The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from the use of excessive force during the arrest process;
- g. Freedom from unlawful imprisonment.

(26) The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

(27) The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SEVENTH CAUSE OF ACTION

(This Cause of Action applies to the City of New York and the officer sued in their official capacity should be characterized as a "Monell" claim.)

(28) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.

(29) Defendant **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, and P.O. "JOHN DOE" #1 AND P.O. "JOHN DOE" #2 (the names herein to be fictitious as they are currently unknown) and POLICE OFFICER PHILLIP PENA SHIELD NO.: 11192**, have grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

(30) **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff(or similarly situated individuals) or without the possession of a court authorized arrest and/or search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should be used where a criminal defendant is not resisting arrest.

(31) **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department to actively enforce the law, while ensuring that the U.S.

Constitution is not violated, in that police officers, including those named are not trained of the following:

1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
2. Excessive force cannot be used against an individual who does not physically resist arrest.
3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
4. An individual such as the Plaintiff herein cannot be subjected to a strip search with cavity inspection unless the police possess legal cause and/or have a reasonable suspicion and/or probable cause that the plaintiff has secreted contraband in or on his person.

(32) The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied his prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

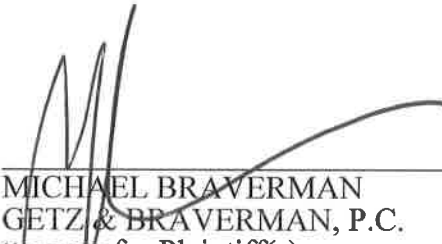
(33) Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officers Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgement against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any

lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bronx, New York
September 29, 2017

Yours, etc.,



MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)
ANIBAL NIEVES
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 9053

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK

COUNTY OF BRONX

SS:

Anibal Nieves, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed Summons & complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED:

Bronx, New York

September 29, 2017X Anibal Nieves

Sworn to before me this

29 day of September, 2017

Notary Public

Arianna L. Walvin
Commissioner of Deeds
City of New York No. 3-7477
Certificate Filed in
Bronx County 12/1/19
Commission Expires 09-1-19

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ANIBAL NIEVES,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, and P.O. "JOHN DOE" #1 AND P.O. "JOHN DOE" #2 (the names herein to be fictitious as they are currently unknown) and POLICE OFFICER PHILLIP PENA SHIELD NO.: 11192,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

GETZ & BRAVERMAN, P.C.
Attorneys for ANIBAL NIEVES
172 East 161st Street
Bronx, New York 10451
(718) 993-3000

TO: THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

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